

Amendment No. 1 to SB0255

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 255*

House Bill No. 490

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 16, Chapter 18, Part 2, is amended by adding the following as a new section:

(a) Notwithstanding another provision of law, constitutional provision, or judicial interpretation thereof, a municipal judge who was duly elected or appointed to office prior to March 7, 2025, and who is qualified for such office under the laws and interpretations in effect at the time of such election or appointment, shall not be disqualified or removed from office due to a residency requirement during the term of office to which the municipal judge was elected or appointed.

(b) Any municipal judge described in subsection (a) shall be deemed a de facto officer whose acts, judgments, and decisions are valid and binding during the completion of the municipal judge's term.

(c) The residency requirements established by the Tennessee supreme court in McNabb v. Harrison, decided March 7, 2025, shall apply prospectively and shall be enforced beginning with the next regularly scheduled election for any affected municipal judgeship after the effective date of this act.

(d) This section does not exempt municipal judges from any qualification or eligibility requirement other than the residency requirement addressed in the McNabb v. Harrison decision.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.